

stated: — “The evidence to prove this purchase in the name of the son to be a trust for the father consists of — 1st, father possessed the money; 2dly, received the profits twenty years; 3dly, made leases; 4thly, took fines; 5thly, enclosed part in a park; 6thly, built much; 7thly, provided materials for more; 8thly, directed Lord Chief Justice North to draw a settlement; 9thly, treated about the sale of it” (*f*): yet, for all this, it was decided, after long and mature deliberation, that the consideration of blood and affection was so predominant, that the father’s perception of rents and profits, or making leases, or the like acts, which the son, in good manners, did not contradict, could not countervail it (*g*).

[*175] The propriety of this decision, upon principle *independently of authority, has been called into question (*a*). It might perhaps be successfully contended, that Lord Nottingham’s determination was founded upon the more enlarged view of the subject in respect even of *principle*; however, the point must at the present day be considered as settled at least upon *authority*, if any point can be considered as settled after repeated decisions (*b*).

[Policy on father’s life.] — So if a father effects a policy of assurance on his own life in the name of a child, and himself pays the premiums and retains the policy until the time of his death, the child will be entitled to the benefit of the policy (*c*).]

8. Evidence from facts to rebut the presumption. — The advancement of the son is a mere question of intention, and, therefore, facts *antecedent to or contemporaneous with* the purchase (*d*), or so *immediately after* it as to constitute part

(*f*) 2 Sw. 596.

(*g*) See 2 Sw. 599.

(*a*) Dyer v. Dyer, 2 Cox, 95; S. C. 1 Watk. Cop. 220.

(*b*) Woodman v. Morrell, 2 Freem. 32, reversed on the re-hearing (see note by Hovenden); Shales v. Shales, Ib. 252; Sidmouth v. Sidmouth, 2 Beav. 447; Williams v. Williams, 32 Beav. 370; Batstone v. Salter, 19 L. R. Eq. 250; 10 L. R. Ch. App. 431; and see Elliot v. Elliot, 2 Ch. Ca.

231; but see Lloyd v. Read, 1 P. W. 607; Redington v. Redington, 3 Ridg. 190; Murless v. Franklin, 1 Sw. 17; Scawin v. Scawin, 1 Y. & C. C. C. 65.

[(*c*) *Re Richardson*, 47 L. T. N. S. 514.]

(*d*) See Williams v. Williams, 32 Beav. 370; Tucker v. Burrow, 2 H. & M. 524; Collinson v. Collinson, 3 De G. M. & G. 409; Murless v. Franklin, 1 Sw. 17, 19; Sidmouth v. Sidmouth, 2 Beav. 447; Lloyd v. Read, 1 P. W.